

FREELANCE DEVELOPMENT AGREEMENT

Joobira — Lowest Unique Bid Auction Platform

Phase 1

Contract Reference: CONTRACT-2026-001

Date of Agreement: _____

Contract Valid From: Date of first payment received

Parties

Developer (Service Provider)

Name: Samuel Gebrekirstos

Phone: 0988277799

Referred to in this contract as “the Developer.”

Client

Name: Shimelis Dinkinah

Business Name: Joobira

Phone: 0910443972

Referred to in this contract as “the Client.”

Section 1 — Project Overview

1.1 Project Description

The Developer agrees to design, develop, test, and deploy the Joobira Lowest Unique Bid Auction Platform (“the Platform”) as a web application and installable Progressive Web App (PWA) for use in the Federal Democratic Republic of Ethiopia.

1.2 Development Reference

This contract is governed by, and must be read together with, the Software Requirements Specification (SRS-2026-001, Version 1.1), which is incorporated herein by reference and attached as an appendix to this contract.

The SRS is the definitive and binding scope boundary of this engagement. Any feature, behavior, or functionality not explicitly described in the SRS is outside the scope of this contract. Requests to add items not in the SRS — regardless of how minor they appear — constitute a Change Request under Section 5 and require separate written agreement and payment.

Section 2 — Scope of Work

2.1 Included Deliverables (Phase 1)

The following features are included in Phase 1, as defined in the attached SRS (SRS-2026-001, v1.1):

1. User registration and authentication system with SMS OTP login
2. Auction listings page (active, upcoming, and closed auctions)
3. Lowest unique bid engine with real-time, concurrency-safe race condition prevention
4. Live auction countdown with WebSocket-based real-time updates
5. Bid history and transparent winner selection audit log
6. User wallet system (top-up and bid fee deduction)
7. Chapa payment gateway integration (Telebirr, CBE Birr, Awash Birr)
8. Watchlist and auction notification system
9. Automated winner announcement system
10. Admin dashboard (auction management, user management, revenue analytics)
11. Trilingual interface: English, Amharic (አማርኛ), and Afaan Oromoo
12. Progressive Web App (PWA) configuration — installable on Android
13. Responsive, mobile-first user interface
14. Product image upload and CDN delivery (Cloudflare R2)
15. Deployment to production hosting environment
16. Charity / Impact Dashboard — a single auto-calculated figure (20% of revenue) drawn from the platform’s transaction ledger
17. Winner Claim / KYC process — photo document upload with manual administrator review

18. Social media links (footer component)

The Platform will be branded and delivered under the name “Joobira” throughout the user interface.

2.2 Explicitly Excluded Deliverables

The following are not included in this contract:

- Native Android or iOS mobile application
- Telegram Bot or Telegram Mini App integration
- Affiliate, referral, or multi-level marketing system
- Physical product delivery or logistics tracking
- Automated charity fund transfers or payment-gateway split-payment configuration (the Charity Dashboard displays a calculated figure only; it does not move funds)
- Any feature not explicitly described in the attached SRS (SRS-2026-001, v1.1)

2.3 Third-Party Costs — Client’s Responsibility

The Developer’s fee covers engineering work only. The following third-party costs are the Client’s sole financial responsibility and are NOT absorbed into the Developer’s fee:

Cost Item	Notes
Chapa merchant account fees & transaction fees	Billed directly by Chapa to the Client
SMS OTP & notification credits (Afromessage / GeezSMS)	Pay-per-SMS; Client maintains the account balance
Hosting fees (Hostinger VPS, KVM 2 tier)	Client owns and pays for the hosting account
Domain name registration and renewal	Client registers and pays for the domain
Ethiopian business license / trade registration	Required for Chapa approval; Client’s legal obligation
Any future third-party API or service fees	Not included in this contract

The Developer will assist the Client in setting up these accounts but will not pay for them.

Section 3 — Payment Terms

3.1 Total Contract Value

One Hundred Thousand Ethiopian Birr (100,000 ETB).

This fee covers engineering and development work only, as defined in Section 2.1 and the SRS. It does not include any third-party costs listed in Section 2.3.

3.2 Payment Schedule & UAT Timeframe

Payment	Trigger Event / Amount
Payment 1 — 35,000 ETB	Due at contract signing, before any work begins
Payment 2 — 35,000 ETB	Due on MVP delivery on staging (working auction engine and payment integration live)
Payment 3 — 30,000 ETB	Due on final production delivery; 30-day warranty period begins

Upon delivery of the MVP (Payment 2) and the Final Production build (Payment 3), the Client has exactly seven (7) calendar days to perform User Acceptance Testing (UAT). If no written bug report is provided within this 7-day window, the deliverable is deemed automatically accepted and the associated payment becomes immediately due.

3.3 Payment Method

Payments shall be made via [Commercial Bank of Ethiopia]. The Developer shall provide payment details upon contract signing.

3.4 Late Payment

If any scheduled payment is delayed by more than five (5) business days beyond the agreed trigger event, the Developer reserves the right to pause all development work until payment is received. The project timeline will be extended proportionally to any delay caused by late payment.

3.5 Upfront Payment — Non-Refundable

The upfront payment (35,000 ETB) is non-refundable once development has commenced, as it compensates for time allocated, setup work, and opportunity cost.

3.6 Final Payment Condition

The final payment (30,000 ETB) becomes due upon production deployment, regardless of delays caused by the Client's failure to meet its responsibilities under Section 6.

Section 4 — Timeline

4.1 Estimated Timeline

The estimated development period is four and a half (4.5) to five and a half (5.5) months from the date Payment 1 is received and confirmed, in line with the schedule set out in the SRS (Section 7). This estimate assumes timely Client feedback and timely Chapa merchant account approval; see Section 4.2.

4.2 Timeline Extensions

The Developer may extend the timeline without penalty in the following circumstances:

- Delays in receiving required Client materials (see Section 6)
- Delays in Chapa merchant account approval
- Delays in delivery or review of the Afaan Oromoo translation
- Unforeseen technical blockers related to third-party APIs
- Force majeure events (power outages, internet infrastructure failure, etc.)

4.3 Timeline Adjustment Notice

The Developer shall notify the Client in writing of any timeline extension within 48 hours of identifying the blocker.

Section 5 — Change Request Policy

5.1 Definition of a Change Request

A Change Request is any request by the Client for work not described in the attached SRS (SRS-2026-001, v1.1), including:

- A new feature not listed in Section 2.1
- A modification that changes the fundamental behavior or design of a delivered feature
- Additional languages beyond the three specified
- Automated charity fund transfer/split-payment functionality
- Any structural database changes made after the core platform build milestone (see SRS Section 7)

5.2 Change Request Process

19. Client submits a written change request (WhatsApp, email, or written note)
20. Developer provides a written cost and time estimate within 3 business days
21. Client approves in writing
22. No change request work begins until written approval and payment are received

5.3 Change Request Pricing

Change requests are billed at an agreed rate per request based on scope and complexity. The Developer will provide a written quote for each request before any work begins. No work proceeds without written agreement on cost.

5.4 Verbal Instructions Not Binding

No verbal instruction, phone call, or informal message constitutes a binding change request. Only written, confirmed change requests with written approval will be executed.

Section 6 — Client Responsibilities

6.1 Mandatory Client Deliverables

Item	Required By / Notes
Chapa merchant account application	As early as possible — Client initiates; Developer assists technically. Approval turnaround directly affects the overall timeline.
Business registration documents (for Chapa)	As early as possible — required by Chapa for merchant approval
Logo, brand colors, and brand assets	Early in the engagement — Developer uses placeholders until received
Afaan Oromoo translation (human-reviewed)	Before the bilingual/trilingual interface milestone — Developer integrates Client-supplied or Client-approved translation; final linguistic accuracy is the Client's responsibility
Product photos and initial auction items	Before integration testing — high quality, minimum 800×800px

6.2 Translation Ownership

The Developer integrates Amharic and Afaan Oromoo translations supplied or approved by the Client. The Client is responsible for sourcing accurate human translation review for Afaan Oromoo content and for reviewing, correcting, and approving all language content before launch. Post-launch translation corrections are billed as Change Requests.

6.3 Content Accuracy

The Client is solely responsible for all content on the platform, including product descriptions, auction terms, pricing, winner communications, and any charity/impact disclosures shown on the platform.

Section 7 — Intellectual Property

7.1 Ownership Upon Full Payment

Upon receipt of all three payments (total 100,000 ETB), the Client owns:

- The Platform's source code as delivered
- All design assets created specifically for this project
- The database schema and project-specific configurations

7.2 Developer's Retained Rights

The Developer retains the right to reuse generic, non-project-specific code components, patterns, and utilities in future projects, and to reference this project in their professional portfolio with the Client's consent.

7.3 No Transfer Before Full Payment

Source code and project files will not be transferred to the Client until Payment 3 is received in full.

Section 8 — Warranty & Bug Fix Period

8.1 Warranty Period

A 30-day warranty begins on the date of final production deployment.

8.2 What the Warranty Covers

- Bugs that prevent features in Section 2.1 from functioning as described in the SRS
- Server-side errors caused by the Developer's code
- Security vulnerabilities introduced by the Developer's implementation, including those affecting KYC document data (see SRS NFR-7)

8.3 What the Warranty Does NOT Cover

- Features the Client expected but are not described in the SRS
- Changes to how a delivered feature works after handover
- Bugs caused by third-party service changes (Chapa, hosting provider, SMS aggregator, etc.)
- Issues caused by the Client modifying the source code after handover
- Performance issues caused by insufficient hosting resources
- Any request that qualifies as a Change Request under Section 5

8.4 Post-Warranty Support

After the 30-day warranty, all support is billed separately or under a maintenance agreement.

Section 9 — Confidentiality

Both parties agree to keep confidential all non-public business information.

Section 10 — Termination & Dormancy

10.1 Termination by Client

The Client may terminate this contract at any time by written notice. Upon termination:

- All payments made to date are non-refundable
- The Developer delivers all work completed to date
- Source code is transferred only after the value of completed work is settled

10.2 Termination by Developer

The Developer may terminate this contract in the following circumstances:

- The Client fails to make a scheduled payment within 10 business days of the trigger event
- The Client engages in abusive, threatening, or harassing behavior toward the Developer
- The Client instructs the Developer to implement features that violate Ethiopian law or third-party service terms
- The Client materially misrepresents the project scope or their business identity
- The Client shares or leaks the Developer’s work-in-progress code or designs to third parties before final handover

Upon Developer-initiated termination for valid cause:

- Payment 1 (35,000 ETB) is non-refundable under all circumstances
- If a subsequent payment has been made, the Developer will deliver all completed work as-is. Any unused portion of the most recent milestone payment beyond the value of completed work will be assessed and returned at the Developer’s discretion
- The Developer is not obligated to complete or polish incomplete features

10.3 Work Delivered on Termination

Upon termination by either party, the Developer delivers all completed work within 5 business days in its current state.

10.4 Dormancy and Ghosting

If the Client fails to respond to Developer communications or fails to provide required deliverables for a period of fourteen (14) consecutive days, the project will be placed on “Dormant Status” and all development will pause. Re-activating a dormant project incurs a reactivation fee of 5,000 ETB. If the project remains dormant for thirty (30) days, the Developer reserves the right to terminate the contract, retain all payments made, and invoice for any unbilled work completed up to that date.

Section 11 — Limitation of Liability & Indemnification

11.1 Maximum Liability

The Developer’s total liability shall not exceed the total amount paid by the Client under this contract (100,000 ETB).

11.2 No Liability for Business Losses

The Developer is not liable for loss of revenue, regulatory shutdown, loss of users, data loss from hosting providers, or payment gateway failures outside the Developer’s control.

11.3 Indemnification

The Client agrees to indemnify, defend, and hold harmless the Developer from any and all claims, lawsuits, government or regulatory actions, and damages arising from the Client's business operations. This includes, but is not limited to, the legality of the lowest unique bid auction model, the platform's charity/impact disclosures, disputes with users over auction outcomes or KYC/winner-claim decisions, and financial transaction disputes.

Section 12 — Dispute Resolution

Both parties agree to attempt resolution through direct communication within 14 days. This contract is governed by the laws of the Federal Democratic Republic of Ethiopia. Any legal proceedings shall be conducted in Addis Ababa.

Section 13 — General Provisions

- This contract, together with the Software Requirements Specification (SRS-2026-001, v1.1), is the entire agreement between the parties
- No amendment is valid unless made in writing and signed by both parties
- Failure to enforce any provision does not waive the right to enforce it in future
- This contract is written in English, which is the authoritative version in case of dispute

Signatures

Developer (Service Provider)

Name: Samuel Gebrekirstos

Signature: _____

Client

Name: Shimelis Dinkinah

Business Name: Joobira

Signature: _____